

HOME / TERMS & CONDITIONS

— TERMS & CONDITIONS

TERMS & CONDITIONS OF TRADE

These terms are designed for the supply of commercial and infrastructure lighting products together with associated technical services, including product selection, lighting calculations, design assistance, controls advice, project documentation and compliance support. They allocate risk between Lumen Method and its customers while preserving any rights that cannot lawfully be excluded.

● IMPORTANT LEGAL REVIEW NOTICE

This document is a commercially focused draft prepared for an Australian professional-lighting supplier. It is not a substitute for advice from an Australian commercial solicitor. Before publication or use, the legal entity details, credit design, warranty periods, PPSA procedure, liability cap, dispute process and any project-specific design or certification obligations should be reviewed and approved by a solicitor familiar with the Australian Consumer Law, unfair contract terms regime, PPSA and Victorian law.

SUPPLIER

[Insert legal entity name] trading
as Lumen Method

ABN / ACN

[Insert]

REGISTERED ADDRESS

[Insert]

EFFECTIVE DATE

[Insert]

FIND WHAT APPLIES TO YOU

The full terms are numbered 1–32 and apply as a whole to every Contract, but most readers only need one or two sections day-to-day. Jump straight to the part that's relevant to you.

PART 1 · EVERYONE

GENERAL TERMS

Definitions and how these Terms apply to a Contract. Worth reading once, by everyone.

PART 2 · TRADE & SUPPLY

ORDERING, PRICING, DELIVERY & RETURNS

For wholesalers, distributors and contractors buying product: quotes, pricing, credit, deposits, delivery, storage, title, damage claims and returns.

PART 3 · DESIGN & TECHNICAL SERVICES

DESIGN, COMPLIANCE & INSTALLATION

For specifying engineers, consultants and installers: customer responsibilities, technical advice, standards/compliance, photometric calculations and IP in design files.

PART 4 · EVERYONE

WARRANTY & LIABILITY

Product warranty, warranty claims, Australian Consumer Law rights, liability caps and indemnities.

PART 5 · EVERYONE

RISK, DISPUTES & GENERAL

Force majeure, default and termination, confidentiality, privacy, subcontractors, disputes and standard legal boilerplate.

REFERENCE

SCHEDULE

Warranty framework by product category — indicative periods, remedies and administration settings.

GENERAL TERMS

APPLIES TO EVERY CUSTOMER

The definitions used throughout the document, and how these Terms become part of a Contract.

1. DEFINITIONS AND INTERPRETATION

ACL	the Australian Consumer Law in Schedule 2 to the Competition and Consumer Act 2010 (Cth).
Business Day	a day other than a Saturday, Sunday or public holiday in Victoria.
Contract	the agreement formed between Lumen Method and the Customer, comprising the accepted Quotation, these Terms, any credit application and any written project-specific conditions accepted by Lumen Method.
Customer	the person or entity acquiring Goods or Services from Lumen Method and includes its employees, agents, contractors and permitted successors.
Design Documents	all calculations, layouts, reports, schedules, drawings, specifications, models, photometric files, control narratives and other technical material supplied by or on behalf of Lumen Method.
Goods	all luminaires, lamps, drivers, controls, poles, brackets, accessories, spare parts, samples and other products supplied or arranged by Lumen Method.
Lumen Method	the legal entity identified on the first page, trading as Lumen Method.
Manufacturer	the manufacturer or upstream supplier of any Goods.
PPSA	the Personal Property Securities Act 2009 (Cth), including regulations and amendments.
Quotation	a proposal, price schedule, tender response, estimate or other written offer issued by Lumen Method.

Services	design assistance, calculations, technical advice, product selection, documentation, commissioning assistance, project support and other services supplied by Lumen Method.
Site	the project site or delivery location identified in the Contract.
Special Goods	Goods manufactured, imported, modified, configured, finished, labelled or procured specifically for the Customer or project, including non-stock Goods.

- 1.2 Headings are for convenience only. "Including" is not limiting. A reference to legislation includes amendments and replacement legislation. The singular includes the plural and vice versa.
- 1.3 If an obligation falls due on a day that is not a Business Day, it is due on the next Business Day.

2. APPLICATION AND ACCEPTANCE

- 2.1 These Terms apply to every supply of Goods or Services by Lumen Method unless Lumen Method expressly agrees otherwise in writing.
- 2.2 The Customer accepts these Terms by signing or accepting a Quotation, issuing a purchase order, paying a deposit, accepting delivery, requesting that work commence or otherwise instructing Lumen Method to proceed.
- 2.3 Any terms contained in the Customer's purchase order, portal, tender documents or other communication do not apply unless expressly accepted in writing by an authorised representative of Lumen Method.
- 2.4 If there is an inconsistency, the following order of precedence applies: (a) written project-specific conditions signed by Lumen Method; (b) the Quotation; (c) these Terms; and (d) any other document incorporated by express reference.
- 2.5 No employee or representative may vary these Terms except in writing with actual authority.

— PART 2

TRADE & SUPPLY TERMS

FOR WHOLESALE, DISTRIBUTORS AND CONTRACTORS PURCHASING PRODUCT

Everything about ordering, pricing, credit, deposits, delivery, storage, title, damage claims and returns. If you're buying stock from Lumen Method, this is the part that affects you day-to-day.

3. QUOTATIONS AND ORDERS

- 3.1 Unless stated otherwise, a Quotation remains open for 30 days and may be withdrawn or corrected before acceptance.
- 3.2 A Quotation is based on the quantities, specifications, drawings, programme, exchange rates, freight assumptions and other information available when issued.
- 3.3 An order is not binding until accepted by Lumen Method in writing or performance has commenced.
- 3.4 Lumen Method may accept or reject any order, including where credit approval, supplier acceptance, product availability, export approval or commercially acceptable freight cannot be secured.
- 3.5 The Customer must verify all model numbers, quantities, optics, outputs, colour temperatures, finishes, control protocols, mounting arrangements, voltage requirements and accessories before ordering.
- 3.6 Clerical, typographical, calculation and transcription errors may be corrected. If a correction materially changes the price or scope, the Customer may cancel the affected part before manufacture or procurement begins.

4. PRICES, TAXES AND CURRENCY

- 4.1 Prices exclude GST unless expressly stated otherwise. The Customer must pay GST and any other taxes, duties, levies or government charges applicable to the supply.
- 4.2 Unless stated otherwise, prices exclude freight, unloading, storage, insurance, installation, testing, commissioning, access equipment, permits, site attendance and disposal.
- 4.3 For imported or foreign-currency Goods, Lumen Method may adjust the price before procurement to reflect material changes in exchange rates, freight, fuel surcharges, port charges, customs costs, tariffs, supplier pricing or government charges.
- 4.4 A price may be varied for changes requested by the Customer, inaccurate or incomplete information, latent site conditions, revised standards, programme acceleration, split deliveries or work outside the quoted scope.

- 4.5 Unless agreed otherwise, the Customer must pay any bank, merchant, dishonour or international transfer fees incurred in receiving payment.

5. CREDIT APPROVAL AND PAYMENT

- 5.1 Supply on credit is subject to Lumen Method's approval and may be varied, suspended or withdrawn at any time on reasonable commercial grounds.
- 5.2 Unless the Quotation states otherwise, invoices are payable within 30 days from invoice date. Time for payment is of the essence.
- 5.3 The Customer must pay invoices without set-off, deduction, counterclaim or withholding, except where required by law or where the amount is genuinely disputed in accordance with clause 31.
- 5.4 Lumen Method may allocate payments against any invoice or debt in the order it determines.
- 5.5 Overdue amounts accrue interest from the due date at the rate prescribed under the Penalty Interest Rates Act 1983 (Vic), or the maximum lawful rate if lower.
- 5.6 The Customer must reimburse reasonable debt recovery costs, legal costs on an indemnity basis and enforcement expenses, to the extent permitted by law.
- 5.7 Lumen Method may require COD, deposit, progress payment, bank guarantee, personal guarantee or other security before accepting or continuing an order.

6. DEPOSITS AND PROGRESS PAYMENTS

- 6.1 Deposits and advance payments are payable before procurement or work begins and are non-refundable to the extent they represent committed supplier costs, work performed or other loss reasonably incurred by Lumen Method.
- 6.2 Lumen Method may invoice separately for design stages, manufacturing milestones, imported Goods, freight, delivery, storage and project variations.
- 6.3 Failure to pay a deposit or progress claim by the due date entitles Lumen Method to suspend performance and revise the programme and price.

7. VARIATIONS, CANCELLATION AND NON-STANDARD GOODS

- 7.1 No variation or cancellation is effective unless accepted by Lumen Method in writing.

- 7.2 The Customer must pay all costs reasonably resulting from a variation, including redesign, re-documentation, supplier charges, expedited freight, rework and project management.
- 7.3 Orders for Special Goods cannot be cancelled or returned after procurement or manufacture has commenced, except with Lumen Method's written agreement.
- 7.4 Where cancellation is accepted, the Customer must pay: (a) completed Services; (b) committed supplier and freight costs; (c) cancellation, restocking and return charges; (d) reasonable administrative and handling costs; and (e) other loss that could not reasonably be avoided.
- 7.5 Any cancellation charge must be a reasonable estimate of the loss or cost caused by cancellation and is subject to rights that cannot lawfully be excluded.

8. AVAILABILITY, SUBSTITUTIONS AND DISCONTINUANCE

- 8.1 All supply is subject to availability from Manufacturers and logistics providers.
- 8.2 Lumen Method may propose an equivalent or superior substitution where Goods are unavailable, discontinued, delayed or changed by the Manufacturer. No substitution will be supplied without Customer approval where it materially changes performance, appearance, compliance or price.
- 8.3 Manufacturers may alter components, construction, dimensions, photometry, firmware, finishes or specifications without notice. Lumen Method will use reasonable efforts to notify the Customer of material changes known before supply.
- 8.4 If Goods become unavailable and no acceptable substitute can be supplied, Lumen Method may cancel the affected portion and refund amounts paid for that portion. This does not limit any non-excludable rights.

9. DELIVERY, FREIGHT AND LEAD TIMES

- 9.1 Delivery dates and lead times are estimates unless expressly stated to be guaranteed in writing.
- 9.2 Lead times commence only when Lumen Method has received all required information, approvals, deposit, credit approval and final confirmed specifications.
- 9.3 Lumen Method is not liable for delay caused by Manufacturers, shipping lines, ports, customs, industrial action, carrier congestion, material shortages, force majeure or Customer delay, except to the extent liability cannot be excluded.
- 9.4 Lumen Method may make partial or staged deliveries and invoice each delivery separately.

- 9.5 Unless otherwise stated, delivery is kerbside during normal business hours. The Customer must provide safe access, suitable unloading equipment, labour and an authorised recipient.
- 9.6 The Customer must notify Lumen Method in advance of access restrictions, booking systems, crane requirements, tailgate requirements, union or induction requirements and restricted delivery hours.
- 9.7 Failed delivery, waiting time, redelivery and additional handling caused by the Customer may be charged at reasonable cost.
- 9.8 Where Incoterms are specified, they are interpreted under the current Incoterms rules stated in the Quotation, subject to any express variation in the Contract.

10. STORAGE AND CUSTOMER DELAY

- 10.1 If the Customer cannot accept delivery when Goods are ready, Lumen Method may store the Goods at the Customer's risk and reasonable cost.
- 10.2 Stored Goods may be treated as delivered for invoicing and payment purposes.
- 10.3 Lumen Method may charge storage, insurance, handling, double movement and financing costs after giving reasonable notice.
- 10.4 If the Customer fails to take delivery for an extended period, Lumen Method may require payment in full and, after reasonable notice, sell or otherwise dispose of the Goods to mitigate loss, accounting to the Customer for net proceeds after costs.

11. RISK, TITLE AND PPSA

- 11.1 Risk in Goods passes to the Customer on the earliest of delivery to the Site, collection by the Customer or its carrier, or placement into storage under clause 10.
- 11.2 Title to Goods does not pass until Lumen Method has received cleared payment of all amounts owing by the Customer in relation to those Goods.
- 11.3 Until title passes, the Customer must keep the Goods identifiable, properly stored, insured and free from any security interest other than Lumen Method's interest.
- 11.4 To the extent permitted by law, the Customer grants Lumen Method a security interest in the Goods, proceeds and any related collateral to secure payment and performance of the Customer's obligations.
- 11.5 The Customer must provide information and assistance reasonably required to register, maintain or enforce Lumen Method's security interest on the PPSR.

- 11.6 Where permitted by the PPSA, the Customer waives the right to receive notices that may lawfully be waived, but not any right that cannot be excluded.
- 11.7 The Customer authorises Lumen Method, after default and where lawful, to enter premises where unpaid Goods are reasonably believed to be located to inspect or recover them, provided Lumen Method acts reasonably and does not breach the peace.
- 11.8 A retention-of-title clause does not itself ensure priority. Lumen Method may register a purchase money security interest or other security interest as appropriate.

12. INSPECTION, SHORTAGES AND TRANSIT DAMAGE

- 12.1 The Customer must inspect Goods promptly on delivery and before installation.
- 12.2 Visible damage, shortage or incorrect supply must be recorded on the carrier's delivery record and notified to Lumen Method with photographs and supporting documents within 5 Business Days.
- 12.3 Latent defects must be notified promptly after discovery.
- 12.4 Failure to give prompt notice may prejudice a freight or supplier claim but does not remove rights that cannot lawfully be excluded.
- 12.5 The Customer must preserve packaging and damaged Goods until Lumen Method or the carrier confirms they may be disposed of.

13. RETURNS AND RESTOCKING

- 13.1 No Goods may be returned without a return authorisation issued by Lumen Method.
- 13.2 Change-of-mind returns are not accepted for Special Goods, used Goods, installed Goods, modified Goods, obsolete Goods, opened control equipment or Goods not in resaleable original packaging.
- 13.3 Where Lumen Method agrees to accept a discretionary return, the Customer bears return freight and may be charged a reasonable restocking, inspection and handling fee disclosed before return.
- 13.4 Returns do not limit remedies available under the ACL or any other non-excludable law.

14. PRODUCT INFORMATION AND TOLERANCES

- 14.1 Catalogues, websites, samples, renders and drawings are general representations only. Actual appearance may vary due to materials, manufacturing tolerances, screen reproduction, batch variation and ambient conditions.
 - 14.2 Unless expressly warranted, dimensions, weights, outputs, power values, colour temperatures, CRI, efficacy, lifetime and photometric values are nominal and subject to recognised manufacturing and measurement tolerances.
 - 14.3 Natural materials, anodised finishes, galvanised finishes, paint, plastics and LEDs may exhibit reasonable colour and texture variation.
 - 14.4 The Customer must not rely on website information as project-specific advice without written confirmation from Lumen Method.
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— PART 3

DESIGN & TECHNICAL SERVICES TERMS

FOR SPECIFYING ENGINEERS, CONSULTANTS AND INSTALLERS

What Lumen Method's design and technical advice does and doesn't cover, standards and compliance statements, photometric calculations, installation responsibilities, and who owns the resulting design files.

15. CUSTOMER RESPONSIBILITIES AND SUITABILITY

- 15.1 The Customer is responsible for providing complete and accurate project information, including drawings, geometry, mounting heights, environmental conditions, electrical characteristics, control requirements, intended use, applicable standards and programme.
- 15.2 Unless Lumen Method expressly accepts a design responsibility in writing, the Customer remains responsible for determining that the Goods and Services are suitable for the Site, purpose and complete system.
- 15.3 The Customer must obtain all permits, approvals, electrical design, structural design, engineering certification and installation services not expressly included in the Quotation.
- 15.4 The Customer must identify corrosive, marine, high-temperature, hazardous, explosive, vibration-prone, chemically aggressive or otherwise abnormal environments before product selection.

- 15.5 The Customer must ensure that supplied Goods are installed, used, maintained and operated by competent persons in accordance with applicable law, standards and Manufacturer instructions.

16. TECHNICAL ADVICE AND DESIGN SERVICES

- 16.1 Lumen Method will perform expressly included Services with due care and skill, subject to the information, scope, assumptions and exclusions stated in the Contract.
- 16.2 Technical advice is limited to lighting products and lighting performance unless another discipline is expressly included. Lumen Method does not provide electrical, structural, civil, fire, accessibility, traffic, environmental or building certification services unless expressly agreed.
- 16.3 Design Documents are prepared for the identified project, stage and purpose only. They must not be reused or applied to another site without written approval.
- 16.4 Lumen Method may rely on information supplied by the Customer, consultants, Manufacturers and other third parties without independently verifying it, unless verification is expressly included.
- 16.5 Any change to geometry, mounting height, pole position, aiming, optics, output, controls, surface reflectance, obstructions, landscaping, road layout or operating conditions may invalidate the Design Documents and require review.
- 16.6 Preliminary concepts, budget designs, tender designs and mark-ups are not construction documents unless expressly identified as approved for construction.
- 16.7 Where the Customer or another party modifies a Design Document or substitutes a product without written approval, Lumen Method is not responsible for the resulting performance or compliance to the extent caused by that modification.

17. STANDARDS, COMPLIANCE AND CERTIFICATION

- 17.1 Any statement of compliance applies only to the standards, editions, criteria, calculation parameters and project conditions expressly identified in the relevant Design Document.
- 17.2 Compliance at design stage does not constitute certification of the completed installation unless Lumen Method is separately engaged to inspect, test and certify the installation and is legally entitled to do so.
- 17.3 The Customer acknowledges that standards, regulations, authority requirements and interpretations may change after quotation or design. Necessary redesign or product changes may be treated as a variation.

- 17.4 Where multiple standards or project criteria conflict, Lumen Method may seek written direction from the Customer's authorised designer or asset owner.
- 17.5 Lumen Method does not warrant approval by a regulator, authority, certifier, superintendent or third-party consultant unless that approval is expressly included as a condition of the Contract.
- 17.6 Product compliance documentation applies only to the specific model, configuration and intended use covered by that documentation.

18. PHOTOMETRIC CALCULATIONS AND DESIGN ASSUMPTIONS

- 18.1 Photometric calculations are mathematical predictions based on nominated software, geometry, reflectances, maintenance factors, depreciation assumptions and Manufacturer-supplied photometric data.
- 18.2 Lumen Method is not responsible for inaccuracies in third-party IES, LDT, BIM, laboratory or Manufacturer data that could not reasonably have been identified.
- 18.3 Calculated results may differ from field measurements because of installation tolerances, aiming, voltage, temperature, obstructions, surface properties, dirt, ageing, vegetation, adjacent lighting and measurement methodology.
- 18.4 Uniformity, glare and illuminance results depend on the nominated calculation grid and observer positions. Results outside that grid or at changed observer positions may differ.
- 18.5 Maintenance factors and design life assumptions require the stated cleaning, inspection, replacement and operating regime. The asset owner is responsible for implementing that regime.
- 18.6 Compliance with numerical criteria does not guarantee the subjective satisfaction of every user or stakeholder.

19. INSTALLATION, COMMISSIONING AND CONTROLS

- 19.1 Goods must be installed by appropriately licensed and competent persons in accordance with Manufacturer instructions, wiring diagrams, approved Design Documents and applicable standards.
- 19.2 The installer must verify supply voltage, earthing, surge protection, circuit loading, insulation, control compatibility, polarity, addressing, environmental sealing and mechanical support.

- 19.3 The Customer is responsible for installation workmanship, cable selection, protective devices, structural adequacy, pole foundations, brackets, aiming and site safety unless expressly included.
- 19.4 DALI, wireless, sensor, emergency and other control systems may require commissioning, addressing, network configuration, software licences and ongoing maintenance. These are excluded unless expressly quoted.
- 19.5 Where Lumen Method provides commissioning assistance, the Customer must ensure the installation is complete, energised, safe, accessible and ready. Abortive attendance may be charged.
- 19.6 Remote monitoring, connected controls and cloud services may depend on third-party networks, cybersecurity measures and service availability. Lumen Method does not guarantee uninterrupted third-party service.

20. INTELLECTUAL PROPERTY AND DESIGN FILES

- 20.1 Pre-existing intellectual property remains the property of its owner.
- 20.2 Subject to full payment, Lumen Method grants the Customer a non-exclusive, non-transferable licence to use final Design Documents solely for the identified project and purpose.
- 20.3 Editable source files, calculation models, templates, pricing methodology, libraries and working files remain Lumen Method's property and are not supplied unless expressly agreed.
- 20.4 The Customer must not remove branding, alter Design Documents, reverse engineer confidential methods or provide files to competitors for reuse or repricing, except as reasonably required for the project.
- 20.5 Lumen Method may retain general know-how, methods and non-confidential learning developed through the project.
- 20.6 The Customer warrants that material it supplies may lawfully be used by Lumen Method and indemnifies Lumen Method against third-party intellectual property claims caused by that material.

— PART 4

WARRANTY & LIABILITY

APPLIES TO EVERY CUSTOMER

Product warranty and how to make a claim, Australian Consumer Law rights, the liability cap, and indemnities.

21. EXPRESS PRODUCT WARRANTY

- 21.1 Subject to the ACL and clause 22, Goods are covered by the written warranty stated in the Quotation, product datasheet, Manufacturer warranty or Schedule 1.
- 21.2 Unless Lumen Method expressly provides its own written warranty, Manufacturer warranties are passed through to the Customer to the extent transferable, and Lumen Method will provide reasonable assistance with a valid claim.
- 21.3 An express warranty is in addition to, and does not replace, rights under the ACL.
- 21.4 Warranty periods commence on delivery unless the applicable written warranty states otherwise.
- 21.5 A warranty remedy may include repair, replacement, replacement components, equivalent substitute Goods or credit, depending on the applicable warranty and law.
- 21.6 Unless required by law or expressly included, warranty does not include removal, access equipment, labour, reinstallation, freight, traffic management, surface restoration, consequential project costs or loss of use.

22. WARRANTY EXCLUSIONS AND CLAIMS

- 22.1 To the extent permitted by law, an express warranty does not cover failure caused by incorrect installation, unauthorised modification, misuse, abnormal voltage, inadequate surge protection, incompatible controls, overheating, blocked ventilation, water ingress through installation, corrosion outside the specified environment, impact, vandalism, pests, fire, flood, lightning or other external cause.
- 22.2 Normal lumen depreciation, colour shift within published tolerances, reasonable finish ageing, consumable items and routine maintenance are not defects unless the applicable warranty states otherwise.
- 22.3 A claim must include proof of purchase, model and batch details, installation date, operating conditions, photographs, fault description, control settings and any test results reasonably requested.
- 22.4 The Customer must not return Goods or undertake chargeable remedial work without authorisation, except where urgent action is reasonably necessary to protect safety or prevent further damage.

- 22.5 Lumen Method may inspect or test alleged faulty Goods. If no defect covered by warranty is found, reasonable inspection, attendance and freight costs may be charged after notice.
- 22.6 Nothing in this clause excludes or restricts a remedy that the Customer is entitled to under the ACL.

23. AUSTRALIAN CONSUMER LAW

- 23.1 Nothing in the Contract excludes, restricts or modifies any consumer guarantee, right or remedy under the ACL or other law that cannot lawfully be excluded, restricted or modified.
- 23.2 Where permitted by section 64A of the ACL and the Goods or Services are not ordinarily acquired for personal, domestic or household use or consumption, Lumen Method's liability for failure to comply with an applicable consumer guarantee is limited, at Lumen Method's option:
- for Goods - to replacement, supply of equivalent Goods, repair, payment of the cost of replacement or equivalent Goods, or payment of the cost of repair; and
 - for Services - to resupply of the Services or payment of the cost of having the Services supplied again.
- 23.3 Clause 23.2 does not apply where it would be unfair or unreasonable under the ACL or otherwise unlawful.
- 23.4 Any statement that a warranty is void relates only to an express warranty and does not remove consumer guarantee rights.

24. LIABILITY AND CONSEQUENTIAL LOSS

- 24.1 Subject to clause 23 and to the maximum extent permitted by law, Lumen Method is not liable for indirect or consequential loss, loss of profit, revenue, opportunity, production, contract, goodwill, anticipated savings, data or use, or for delay, liquidated damages or third-party penalties.
- 24.2 Lumen Method is not liable to the extent loss is caused or contributed to by the Customer, installer, consultant, Manufacturer, carrier, authority, third party, inaccurate information, unauthorised change, failure to mitigate or failure to follow instructions.
- 24.3 Subject to clause 23, Lumen Method's aggregate liability arising from a Contract is limited to the greater of: (a) the amount paid or payable for the affected Goods or Services; and (b) the amount recoverable under Lumen Method's applicable insurance, if any, for the claim.

- 24.4 The liability cap does not apply to fraud, wilful misconduct, death or personal injury caused by negligence, breach of confidentiality, infringement of third-party intellectual property rights, or liability that cannot lawfully be limited.
- 24.5 The parties acknowledge that the pricing reflects the allocation of risk in these Terms.
- 24.6 Each exclusion and limitation is to be read separately and reduced only to the minimum extent necessary to remain enforceable.

25. INDEMNITIES

- 25.1 The Customer indemnifies Lumen Method against third-party claims, loss and reasonable costs to the extent caused by:
- the Customer's breach of the Contract or unlawful act;
 - incorrect or incomplete information supplied by the Customer;
 - installation, modification, use or maintenance contrary to instructions;
 - unauthorised changes to Design Documents or product substitutions;
 - material supplied by the Customer that infringes third-party rights; or
 - site conditions, work or services outside Lumen Method's scope.
- 25.2 The indemnity is reduced to the extent that Lumen Method caused or contributed to the relevant loss.
- 25.3 Lumen Method must take reasonable steps to mitigate indemnified loss and must not settle a third-party claim affecting the Customer without reasonable consultation.

— PART 5

RISK, DISPUTES & GENERAL

APPLIES TO EVERY CUSTOMER

Force majeure, default and termination, confidentiality, privacy, subcontractors, how disputes are handled, and standard legal boilerplate.

26. FORCE MAJEURE

- 26.1 Neither party is liable for delay or failure caused by an event beyond its reasonable control, including natural disaster, fire, flood, epidemic, war, terrorism, civil disorder, industrial action, cyber incident, utility failure, government action, embargo, port closure, carrier disruption, material shortage or Manufacturer failure.
- 26.2 The affected party must notify the other party within a reasonable time and take reasonable steps to minimise the effect.
- 26.3 Payment obligations for Goods or Services already supplied are not suspended.
- 26.4 If the event continues for more than 90 days and materially prevents performance, either party may terminate the affected unperformed portion on written notice without liability for future performance, but the Customer must pay for completed work and unavoidable committed costs.

27. DEFAULT, SUSPENSION AND TERMINATION

- 27.1 Lumen Method may suspend supply on reasonable notice if the Customer fails to pay, exceeds its credit limit, fails to provide required information or approvals, becomes insolvent, or otherwise materially breaches the Contract.
- 27.2 Where a breach is capable of remedy, Lumen Method will ordinarily allow a reasonable period to remedy before termination, unless urgent suspension is reasonably necessary to protect safety, credit exposure, intellectual property or legal compliance.
- 27.3 Lumen Method may terminate immediately if the Customer becomes insolvent, repudiates the Contract, engages in fraud or serious unlawful conduct, or repeatedly fails to remedy material breaches.
- 27.4 Termination does not affect accrued rights. The Customer must pay for Goods supplied, Services performed and unavoidable commitments made before termination.
- 27.5 Clauses concerning payment, title, PPSA, intellectual property, confidentiality, liability, indemnity and dispute resolution survive termination.

28. CONFIDENTIALITY

- 28.1 Each party must protect the other party's confidential commercial, technical and pricing information and use it only for the Contract.
- 28.2 Confidentiality does not apply to information that is public other than through breach, independently developed, lawfully received from a third party, or required to be disclosed by law.

- 28.3 A party may disclose confidential information to employees, professional advisers, Manufacturers and subcontractors who need it and are bound by appropriate confidentiality obligations.

29. PRIVACY

- 29.1 Lumen Method may collect, use and disclose personal information for quotations, credit assessment, supply, delivery, support, debt recovery, legal compliance and ordinary business administration.
- 29.2 Information may be disclosed to Manufacturers, carriers, insurers, credit reporting bodies, professional advisers, service providers and authorities where reasonably required.
- 29.3 Lumen Method will handle personal information in accordance with applicable privacy law and its published privacy policy.
- 29.4 The Customer must ensure that it is authorised to provide personal information to Lumen Method for these purposes.

30. THIRD-PARTY MANUFACTURERS AND SUBCONTRACTORS

- 30.1 Lumen Method may use Manufacturers, freight providers, laboratories, designers, commissioning specialists and other subcontractors.
- 30.2 Third-party terms, licences, warranties and service conditions may apply to particular Goods or Services and will be provided or identified where material.
- 30.3 Lumen Method remains responsible for its own obligations under the Contract but is not responsible for independent acts of third parties outside its reasonable control, subject to non-excludable law.

31. DISPUTE RESOLUTION

- 31.1 A party claiming a dispute must provide written notice describing the issue, relevant facts and proposed resolution.
- 31.2 Authorised representatives must meet or confer in good faith within 10 Business Days after notice.

- 31.3 If unresolved within 20 Business Days, either party may refer the dispute to mediation administered in Melbourne by an agreed mediator.
- 31.4 Nothing prevents a party seeking urgent interlocutory relief, enforcing payment of an undisputed amount or exercising PPSA rights.
- 31.5 Pending resolution, the parties must continue performing undisputed obligations where reasonably practicable.

32. GENERAL

- 32.1 Notices may be sent by hand, prepaid post or email to the latest notified contact details.
- 32.2 The Customer may not assign or novate the Contract without Lumen Method's written consent, not to be unreasonably withheld. Lumen Method may assign receivables or transfer the Contract as part of a genuine business restructure or sale, provided the Customer's rights are not materially reduced.
- 32.3 A waiver is effective only in writing and applies only to the specific instance.
- 32.4 If a provision is invalid or unenforceable, it is severed or read down to the minimum extent necessary without affecting the remainder.
- 32.5 The Contract constitutes the entire agreement about its subject matter, but does not exclude liability for misleading or deceptive conduct or other liability that cannot lawfully be excluded.
- 32.6 The Contract is governed by the laws of Victoria, Australia. The parties submit to the non-exclusive jurisdiction of Victorian courts.
- 32.7 Electronic signatures, counterparts and electronic acceptance are permitted.
- 32.8 Lumen Method may update these Terms for future Contracts. The Terms applying to an existing Contract are those accepted when that Contract was formed unless the parties agree otherwise.

— REFERENCE

SCHEDULE

SCHEDULE 1 — WARRANTY FRAMEWORK

Complete this schedule after confirming the warranty position for each product family and Manufacturer. Where a Quotation or Manufacturer warranty states a different period, that stated period prevails for the relevant Goods.

PRODUCT CATEGORY	INDICATIVE EXPRESS WARRANTY	PRINCIPAL REMEDY	PROJECT-SPECIFIC NOTES
Standard luminaires	[e.g. 5 years]	Repair / replacement component / equivalent product	Confirm operating-hour and ambient-temperature limits
Drivers and control gear	[e.g. 5 years]	Replacement component	May be governed by component manufacturer warranty
Emergency equipment / batteries	[insert]	Repair / replacement component	Mandatory testing and maintenance apply
Connected controls / sensors	[insert]	Repair / replacement / software remedy	Third-party platform and subscription terms may apply
Poles, brackets and fabricated items	[insert]	Repair / replacement	Finish and corrosion category must be specified
Special or project-manufactured Goods	As quoted	As quoted	Approved drawings and samples govern

RECOMMENDED WARRANTY ADMINISTRATION SETTINGS

- Require proof of purchase, product label and batch information.
- Define whether warranty starts at delivery, commissioning or practical completion, and impose a reasonable long-stop date.
- Specify maximum ambient temperature, switching cycles, annual operating hours and required surge protection.
- State whether labour, access equipment, traffic management, freight and reinstatement are included or excluded.

- Create a project-specific warranty certificate only after final product selection and commercial approval.
- Maintain a warranty register linking serial/batch data, delivery records and project documents.

END OF DOCUMENT



Specification lighting for electrical engineers and designers.

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